

Tentative Rulings for August 11, 2026 Department M301

**To request oral argument, you must notify
Judicial Secretary Lauren Garcia at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department M301 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **161 538 5472**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVME2600230	GREENBERG VS TESLA, INC.	MOTION TO COMPEL ARBITRATION

Tentative Ruling: Motion to Compel Arbitration is Granted. Case is stayed pending arbitration. All future dates vacated.

Request for Judicial Notice – Defendant Tesla, Inc. requests judicial notice of the Complaint in this case filed on January 6, 2026, which is granted pursuant to Evid. Code § 452(d).

Motion to Compel Arbitration - Upon the petition/motion of a party to an agreement to arbitrate, the court must grant a petition to compel arbitration unless it finds: no written agreement to arbitrate exists; the right to compel arbitration has been waived; grounds exist for revocation of the agreement; or litigation is pending that may render the arbitration unnecessary or create conflicting rulings on common issues. (CCP § 1281.2.) A proceeding to compel arbitration is in essence a suit in equity to compel specific performance of a contract. (*Freeman v. State Farm Mutual Auto Insurance Co.* (1975) 14 Cal.3d 473, 479.) The petition/motion to compel must set forth the provisions of the written agreement and the arbitration clause verbatim, or such provisions must be attached and incorporated by reference. (CRC 3.1330; see also *Condee v. Longwood Mgmt. Corp.* (2001) 88 Cal.App.4th 215, 218-19.) There is a strong public policy in favor of arbitration agreements.” (*Blake v. Ecker* (2001) 93 Cal.App.4th 728, 741.) Given the policy favoring arbitration, “doubts concerning the scope of arbitrable issues are to be resolved in favor of arbitration.” (*Ericksen, Arbuthnot, McCarthy, Kearney & Walsh, Inc. v. 100 Oak Street* (1983) 35 Cal.3d 312, 323; see also *Moncharsh v. Heily & Blase* (1992) 3 Cal.4th 1, 9.)

Existence of an Arbitration Agreement - Both the Federal Arbitration Act (FAA) and the California Arbitration Act (CAA) require the existence of a valid arbitration agreement between the parties, before arbitration can be compelled. (See 9 U.S.C. §2 and CCP §1281.2) The petition/motion to compel must set forth the provisions of the written agreement and the arbitration clause verbatim, or such provisions must be attached and incorporated by reference. (CRC 3.1330; see also *Condee v. Longwood Mgmt. Corp.* (2001) 88 Cal.App.4th 215, 218-19.) The moving party bears the burden of proving the existence of a valid arbitration agreement, which can be met by attaching a copy of the agreement. (*Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal.App.4th 836, 842.) The burden then shifts to the opposing party to demonstrate the falsity of the purported agreement. (*Condee, supra*, 88 Cal. App. 4th at 218-19.)

In this case, Defendant Tesla, Inc. produced a copy of the Motor Vehicle Order Agreement (MVOA) for the Subject Vehicle, which contains the Arbitration Agreement. The Arbitration Agreement states in pertinent part, “(Y)ou agree that any dispute arising out of or relating to any aspect of the relationship between you and Tesla will not be decided by a judge or jury but instead by a single arbitrator in an arbitration administered by the American Arbitration Association(AAA) under its Consumer Arbitration Rules. This includes claims arising before this agreement such as claims

related to statements about our products. You further agree that any disputes related to the arbitrability of your claims will be decided by the court rather than an arbitrator."

(Decl. of Raymond Kim, Ex. 1, p. 3.) Defendant has established the existence of an arbitration agreement signed by the Plaintiff covering claims asserted in the Complaint.

Prior to taking delivery of the vehicle, Plaintiff also signed the Retail Installment Sales Contract(RISC) which also contains an arbitration provision. The motion is unopposed therefore the Plaintiff does not dispute the signature or the existence of an agreement to arbitrate.

Unconscionability - Once the existence of an arbitration agreement is established, "the party opposing arbitration bears the burden of proving by a preponderance of the evidence any defense, such as unconscionability. (*Cook v. University of Southern California* (2024) 102 Cal. App. 5th 312, 320.) The doctrine of unconscionability has a procedural and a substantive element, the former focusing on oppression or surprise due to unequal bargaining power, the latter on overly harsh or one-sided results." (*Sonic-Calabasas A, Inc. v. Moreno* (2013) 57 Cal. 4th 1109, 1133.) "[A] sliding scale is invoked whereby the more procedurally oppressive the arbitration clause is, the less evidence of substantive unconscionability is required to warrant the conclusion that the agreements to arbitrate are unenforceable." (*McManus v. CIBC World Markets Corp.* (2003) 109 Cal.App.4th 76, 91). The party opposing the agreement must prove that it is both procedurally and substantively unconscionable. (*Crippen v. Central Valley RV Outlet* (2004) 124 Cal. App. 4th 1159, 1165.)

Procedural unconscionability involves two factors: oppression and surprise. (*Carlson v. Home Team Pest Defense, Inc.* (2015) 239 Cal. App. 4th 619, 631.) "Oppression occurs 'where a contract involves lack of negotiation and meaningful choice' and surprise involves the extent to which 'the allegedly unconscionable provision is hidden within a prolix printed form.'" (*Haydon v. Elegance at Dublin* (2023) 97 Cal. App. 5th 1280, 1287.) "An adhesive contract is standardized, generally on a preprinted form, and offered by the party with superior bargaining power 'on a take-it-or-leave-it basis.'" (*OTO, L.L.C. v. Kho* (2019) 8 Cal. 5th 111, 126.) The adhesive nature of an arbitration agreement is sufficient to establish some degree of procedural unconscionability." (*Sanchez v. Valencia Holding Co, LLC* (2015) 61 Cal.4th 899, 906; *Samaniego v. Empire Today LLC* (2012) 205 Cal.App.4th 1138, 1145.)

The MVOA contains an opt-out provision that was not done by the Plaintiff. (Decl. of Raymond Kim) The RISC does not contain an opt out provision and any procedural unconscionability would be minimal. However, the MVOA does not contain any Procedural Unconscionability because of the opt out provisions and neither the RISC or the MVOA appear to contain surprise.

The Plaintiff must also show substantive unconscionability. An arbitration agreement is substantively unconscionable if it is "manifestly unfair or one-sided." (*Sanchez, supra*, 61 Cal.4th at 915.) In assessing substantive unconscionability, the "paramount consideration" is mutuality of the obligation to arbitrate. (*Nyulassy v. Lockheed Martin Corp.* (2004) 120 Cal.App.4th 1267, 1287.)

Accordingly although unopposed, the MVOA and RISC do not appear to this Court to be one-sided or otherwise substantively unconscionable.

2.

CASE #	CASE NAME	HEARING NAME
CVME2603408	BADA VS MERCEDES-BENZ USA LLC.	MOTION TO COMPEL ARBITRATION

Tentative Ruling: Motion to Compel Arbitration is Granted. Case is stayed pending Arbitration. All future dates vacated.

Request for Judicial Notice - Plaintiff requests judicial notice of the Complaint in this case, which is granted pursuant to Evid. Code § 452(d).

Motion to Compel Arbitration - Upon the petition/motion of a party to an agreement to arbitrate, the court must grant a petition to compel arbitration unless it finds: no written agreement to arbitrate exists; the right to compel arbitration has been waived; grounds exist for revocation of the agreement; or litigation is pending that may render the arbitration unnecessary or create conflicting rulings on common issues. (CCP § 1281.2.) A proceeding to compel arbitration is in essence a suit in equity to compel specific performance of a contract. (*Freeman v. State Farm Mutual Auto Insurance Co.* (1975) 14 Cal.3d 473, 479.) The petition/motion to compel must set forth the provisions of the written agreement and the arbitration clause verbatim, or such provisions must be attached and incorporated by reference. (CRC 3.1330; see also *Condee v. Longwood Mgmt. Corp.* (2001) 88 Cal.App.4th 215, 218-19.) There is a strong public policy in favor of arbitration agreements.” (*Blake v. Ecker* (2001) 93 Cal.App.4th 728, 741.) Given the policy favoring arbitration, “doubts concerning the scope of arbitrable issues are to be resolved in favor of arbitration.” (*Eriksen, Arbuthnot, McCarthy, Kearney & Walsh, Inc. v. 100 Oak Street* (1983) 35 Cal.3d 312, 323; see also *Moncharsh v. Heily & Blase* (1992) 3 Cal.4th 1, 9.)

Existence of an Arbitration Agreement - Both the Federal Arbitration Act (FAA) and the California Arbitration Act (CAA) require the existence of a valid arbitration agreement between the parties, before arbitration can be compelled. (See 9 U.S.C. §2 and CCP §1281.2) The petition/motion to compel must set forth the provisions of the written agreement and the arbitration clause verbatim, or such provisions must be attached and incorporated by reference. (CRC 3.1330; see also *Condee v. Longwood Mgmt. Corp.* (2001) 88 Cal.App.4th 215, 218-19.) The moving party bears the burden of proving the existence of a valid arbitration agreement, which can be met by attaching a copy of the agreement. (*Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal.App.4th 836, 842.) The burden then shifts to the opposing party to demonstrate the falsity of the purported agreement. (*Condee, supra*, 88 Cal. App. 4th at 218-19.)

In this case, Defendant produced a copy of the California Motor Vehicle Lease Agreement (“Lease Agreement”) for the Subject Vehicle, which contains a section titled Important Arbitration Disclosures (“Arbitration Agreement”). The Arbitration Agreement states:

Any claim or dispute, whether in contract, tort or otherwise (including any dispute over the interpretation, scope, or validity of this lease, arbitration section or the arbitrability of

any issue), between you and us or any of our employees, agents, successors, assigns, or the vehicle distributor, *including Mercedes Benz USA LLC (each a “Third Party Beneficiary”)*, which arises out of or relates to a credit application, this lease, or any resulting transaction or relationship arising out of this lease (including any such relationship with third parties who do not sign this contract), *shall at the election of either you, us, or a Third Party Beneficiary*, be resolved by a neutral, binding arbitration and not by a court action.

(Decl. of Leung, Ex. 1, p. 4, emphasis added.) Page 6 of the Lease Agreement appears contain Plaintiff’s signature. Plaintiff does not dispute that she signed the Lease Agreement. Because the Arbitration Agreement applies to claims or disputes involving any relationship arising out of the Lease, Defendant has established the existence of an arbitration agreement covering claims asserted in the Complaint.

Third Party Beneficiary Status - Generally, only a party to an arbitration agreement may enforce its terms. (*Ronay Family Limited Partnership v. Tweed* (2013) 216 Cal.App.4th 830, 837-38.) However, there are several exceptions to this rule that allow a nonsignatory to enforce an arbitration agreement. (*JSM Tuscany, LLC v. Superior Court* (2011) 193 Cal.App.4th 1222, 1236–1237.) A third-party beneficiary may enforce an arbitration agreement where the party seeking to compel arbitration shows that *the arbitration clause* was made expressly for its benefit. (*Fuentes v. TMCSF, Inc.* (2018) 26 Cal. App. 5th 541, 552, emphasis in original.) “Whether the third party is an intended beneficiary or merely an incidental beneficiary involves construction of the intention of the parties, gathered from reading the contract as a whole in light of the circumstances under which it was entered.” (*Cione v. Foresters Equity Services* (1997) 58 Cal.App.4th 625, 636 [internal citation omitted].) A third party need not be named in the contract – he merely must show he is a member of the class for which the benefit was made for. (*Prouty v. Gores Technology Group* (2004) 121 Cal.App.4th 1225, 1222.) To establish third party beneficiary status, the nonparty seeking to enforce the arbitration agreement must establish all of the following elements: “(1) whether the third party would in fact benefit from the contract, (2) whether a motivating purpose of the contracting parties was to provide a benefit to the third party, and (3) whether permitting a third party to bring its own breach of contract action against a contracting party is consistent with the objectives of the contract and the reasonable expectations of the contracting parties.” (*Goonewardene v. ADP, LLC* (2019) 6 Cal.5th 817, 829-830.)

Here, Mercedes is named as a third-party beneficiary, and as such, entitled to elect arbitration under the express terms of the Arbitration Agreement. As such, the Arbitration Agreement provides a benefit to Mercedes. Providing this benefit appears to be the motivating purpose of naming Mercedes as the third-party beneficiary. Permitting Mercedes to enforce the Agreement is consistent with the express terms. Accordingly, Defendant has established third party beneficiary standing to compel arbitration.

Plaintiff argues that Defendant cannot enforce the Arbitration Agreement pursuant to the Supreme Court decision in *Ford Motor Warranty Cases* (2025) 17 Cal.5th 1101. However, the Opposition appears to focus mostly on equitable estoppel rather than third party beneficiary status. Under the doctrine of equitable estoppel, a nonsignatory may compel arbitration against a signatory when the causes of action against the nonsignatory are intimately founded in and intertwined with the underlying contract

obligations such that the signatory plaintiff must rely on contract terms in a claim against a nonsignatory defendant. (*Ford Motor Warranty Cases* (2023) 89 Cal. App. 5th 1324, 1332-1333.) The Supreme Court held that the plaintiff's breach of warranty claims were not based on or intertwined with the sales contract containing the Arbitration Agreement. (Id at 1334.) It stated that under California law, a manufacturer's warranties imposed outside of the sales contract are not treated as part of the sales contract. (Id at 1335.) Therefore, the Court held that equitable estoppel did not apply. (Id at 1336.) Defendant does not contend that equitable estoppel applies here. Instead, it argues that it may enforce the Arbitration Agreement as a third-party beneficiary.

In the *Ford Motor Warranty Cases*, the Court also analyzed the manufacturer's contention that it was a third-party beneficiary and determined that the sales contract at issue did not reflect the intention to benefit the manufacturer under the *Goonewardene* test. (Id at 1338.) The Court noted that if the signatories had intended to benefit the manufacturer, they could have simply named it directly or class as a person entitled to compel arbitration, which was not done in that case. (Id at 1339.)

However, unlike the arbitration agreement at issue in the *Ford Motor Warranty Cases*, the Arbitration Agreement here expressly names Mercedes as a third-party beneficiary and states that, as a third-party beneficiary, it is entitled to elect arbitration under the Agreement. (See above.) This shows that the parties intended Mercedes to be a third-party beneficiary.

Unconscionability - Once the existence of an arbitration agreement is established, “the party opposing arbitration bears the burden of proving by a preponderance of the evidence any defense, such as unconscionability. (*Cook v. University of Southern California* (2024) 102 Cal. App. 5th 312, 320.) The doctrine of unconscionability has a procedural and a substantive element, the former focusing on oppression or surprise due to unequal bargaining power, the latter on overly harsh or one-sided results.” (*Sonic-Calabasas A, Inc. v. Moreno* (2013) 57 Cal. 4th 1109, 1133.) “[A] sliding scale is invoked whereby the more procedurally oppressive the arbitration clause is, the less evidence of substantive unconscionability is required to warrant the conclusion that the agreements to arbitrate are unenforceable.” (*McManus v. CIBC World Markets Corp.* (2003) 109 Cal.App.4th 76, 91). The party opposing the agreement must prove that it is both procedurally and substantively unconscionable. (*Crippen v. Central Valley RV Outlet* (2004) 124 Cal. App. 4th 1159, 1165.)

Procedural unconscionability involves two factors: oppression and surprise. (*Carlson v. Home Team Pest Defense, Inc.* (2015) 239 Cal. App. 4th 619, 631.) “Oppression occurs ‘where a contract involves lack of negotiation and meaningful choice’ and surprise involves the extent to which ‘the allegedly unconscionable provision is hidden within a prolix printed form.’” (*Haydon v. Elegance at Dublin* (2023) 97 Cal. App. 5th 1280, 1287.) “An adhesive contract is standardized, generally on a preprinted form, and offered by the party with superior bargaining power ‘on a take-it-or-leave-it basis.’” (*OTO, L.L.C. v. Kho* (2019) 8 Cal. 5th 111, 126.) The adhesive nature of an arbitration agreement is sufficient to establish some degree of procedural unconscionability.” (*Sanchez v. Valencia Holding Co, LLC* (2015) 61 Cal.4th 899, 906; *Samaniego v. Empire Today LLC* (2012) 205 Cal.App.4th 1138, 1145.)

It appears to be undisputed that Arbitration Agreement was a contract of adhesion that was required as part of the Lease Agreement. Although the Arbitration Agreement is contained within the larger Lease Agreement, the title is bolded and the font is legible. The signature page also draws attention to the Important Arbitration Disclosure section. Although Plaintiff has not established surprise, the adhesive nature of the Arbitration Agreement shows some level of procedural unconscionability.

While Plaintiff has established some degree of procedural unconscionability, she must also show substantive unconscionability. An arbitration agreement is substantively unconscionable if it is “manifestly unfair or one-sided.” (*Sanchez, supra*, 61 Cal.4th at 915.) In assessing substantive unconscionability, the “paramount consideration” is mutuality of the obligation to arbitrate. (*Nyulassy v. Lockheed Martin Corp.* (2004) 120 Cal.App.4th 1267, 1287.)

Plaintiff attempts to argue that the Arbitration Agreement is substantively unconscionable because Plaintiff was required to waive her right to jury trial. Plaintiff cites no authority for this premise which could potentially render all arbitration agreements substantively unconscionable. Plaintiff has not shown how the Arbitration Agreement is substantively unconscionable. Accordingly, they have not met their burden of establishing both procedural and substantive unconscionability.

3.

CASE #	CASE NAME	HEARING NAME
CVSW2307900	GONZALEZ VS AMERICAN HONDA MOTOR CO., INC.	MOTION FOR ATTORNEY’S FEES

Tentative Ruling: Motion is granted subject to a reduction. Plaintiff’s awarded reasonable attorney’s fees in the amount of \$34,103.00 and \$4,421.82 in costs.

Plaintiffs seek attorneys' fees for the total amount of \$56,481.00 (consisting of the lodestar figure of \$37,654.00 and a 1.5 multiplier of \$18,827.00), which Plaintiffs contend are recoverable under Civil Code section 1794, subdivision (d) as reasonably necessary fees. Plaintiffs present the time record of the attorneys of the firm which represented them, for 93.5 hours billed at the various hourly rates ranging from \$300 to \$600. Plaintiffs also seek \$4,421.82 in costs and expenses as referenced in their Memorandum of Costs.

Fees should be reduced. The fees should be reduced for interoffice conferences totaling \$1,476.50, duplicative work totaling \$1,849.50, and anticipated work rate adjustment of \$225.00. No multiplier should apply. The hourly rates billed by Plaintiffs' attorneys up to \$550 are reasonable. Therefore, Plaintiffs should recover \$34,103.00 in fees and \$4,421.82 in costs.

Fees are to be calculated through use of the Lodestar method.

The prevailing plaintiff in action under Song-Beverly Consumer Warranty Act, commonly known as the lemon law, is entitled to award of reasonable attorney's fees. (Civ. Code, §1794(d).) The court is to use lodestar method to determine reasonable fee. (*Doppes v. Bentley Motors, Inc.*, (2009) 174 Cal. App. 4th 967, 998.)

Under the lodestar method, the judge must first determine the lodestar figure the reasonable hours spent multiplied by the reasonable hourly rate of each attorney who was involved in presenting the case. (*Glaviano v. Sacramento City Unified Sch. Dist.* (2018) 22 Cal. App. 5th 744, 748.) When using the lodestar method, the reasonable hourly rate is the prevailing hourly rate for private attorneys in the community who conduct noncontingent litigation of the same type. (*Id.*) Prevailing hourly rates apply even when attorney represented party on contingent fee basis, charged nothing for attorney's services, charged below-market or discounted rates, or was in-house counsel. (*Id.*)

The hours billed by Plaintiffs' counsel's office should be subject to reduction -The following language of Civil Code section 1794, subdivision (d), providing for award of fees and cost to prevailing party requires trial court to base the prevailing buyer's attorney fee award upon actual time expended on the case, as long as such fees are reasonably incurred: "the buyer shall be allowed by the court to recover as part of the judgment as sum equal to the aggregate amount of costs and expenses, including attorney's fees based on *actual time expended*, determined by the court to have been *reasonably incurred by the buyer* in connection with the commencement and prosecution of such action." (Civ. Code, § 1794(d), italics added.) The starting point for this determination is the attorney's time records. (*Horsford v. Board of Trustees of Calif. State Univ.* (2005) 132 Cal.App.4th 359, 395-397.) The approach to determining reasonable attorney fee award under Song-Beverly Consumer Warranty Act is "consistent with approach to determining a reasonable attorney fee in various statutory and contractual contexts, which 'ordinarily begins with the "lodestar," i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate. (*Warren v. Kia Motors America, Inc.* (2018) 30 Cal.App.5th 24, 36.)

"Testimony of an attorney as to the number of hours worked on a particular case is sufficient evidence to support an award of attorney fees, even in the absence of detailed time records." (*Martino v. Denevi* (1986) 182 Cal.App.3d 553, 559.) "In challenging attorneys fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence." (*Premier Medical Management Systems, Inc. v. California Ins. Guarantee Assn.* (2008) 163 Cal.App.4th 550 564 (Premier Medical).) "General arguments that fees are excessive, duplicative, or unrelated do not suffice." (*Ibid.*) A challenge to reasonableness of fees must be supported by evidence by citation to record and explanation of which fees are challenged. (*Id.* at 562.)

Here, Defendant accurately points out that the use of 13 attorneys at the same firm working on the same case and often billing on the same task or matters contributes to padded billing practices, which can be apparent from the amount of inter-office meetings and correspondences exchanged between attorneys at the Plaintiffs' counsel's law firm. (Opposition, 2:21-28.) A general review of the firm's time entries reflects significant inefficiencies and administrative clerical work being performed by 13 attorneys at rates as high as \$600 per hour. (*Id.*)

There are a number of factors that a judge may consider in determining that a reduction in fees is warranted. (*Morris v. Hyundai Motor America* (2019) 41 Cal.App.5th 24, 4 (Morris).) "In evaluating whether the attorney fee request is reasonable, the trial court

should consider “ ‘whether the case was overstaffed, how much time the attorneys spent on particular claims, and whether the hours were reasonably expended.’ ” [Citation.]” (*Id.* at 38.) “ ‘A reduced award might be fully justified by a general observation that an attorney overlitigated a case or submitted a padded bill or that the opposing party has stated valid objections.’ ” [Citation.]” (*Ibid.*) Based on the general observation, the fees billed by Plaintiff’s attorneys do not appear excessive or unreasonable. However, based on the general observation, certain reductions to the fees billed by Plaintiffs’ attorneys are warranted.

Fees should be reduced for interoffice conferences. The billing records reflect 23 entries totaling \$1,476.50 for inter-office communications, which reflect the inherent inefficiencies of staffing 13 attorneys and contribute to padded billing. These entries are: 6/6/2022 (\$35); 6/13/2022 (\$35); 6/28/2022 (\$37.50); 7/18/2022 (\$35); 7/25/2022 (\$35); 8/1/2022 (\$35); 11/18/2022 (\$112.50); 11/18/2022 (\$70); 12/1/2022 (\$262.50); 1/6/2023 (\$39.50); 3/8/2023 (\$79); 3/13/2023 (\$39.50); 10/2/2023 (\$39.50); 10/13/2023 (\$39.50); 1/15/2024 (\$135); 1/29/2024 (\$42.50); 6/18/2024 (\$39.50); 6/26/2024 (\$75); 6/27/2024 (\$75); 7/2/2024 (\$45); 10/7/2024 (\$37.50); 10/22/2024 (\$42.50); 11/13/2024 (\$90).

Fees should also be reduced for duplicative work. The billing records reflect 5 entries totaling \$1,849.50 for duplicative work made necessary by overstaffing this matter with multiple attorneys. These entries are: 7/26/2022 (\$1,015); 9/20/2022 (\$75); 11/23/2022 (\$35); 3/12/2023 (\$544.50); 1/16/2024 (\$180).

Regarding anticipated work: Plaintiff seeks \$2,700 for 4.5 hours of work anticipated for reviewing the opposition and drafting a reply at \$600/hour. The reply was not accompanied by counsel’s declaration corroborating the anticipated hours demanded. However, 4.5 hours is reasonable for the work involved in submitting a reply to the opposition. Nevertheless, the hourly rate of \$600 is not justified and should be reduced to \$550. Rate reduction: $4.5 \times (\$600 - \$550) = \$225$.

Hence, the fee award should be subject to total reductions of: $\$1,476.50 + \$1,849.50 + \$225 = \$3,551.00$.

No multiplier should be applied - The trial court has the discretion to increase or decrease the lodestar figure by applying a positive or negative multiplier based on many factors. (*Glaviano, supra*, 22 Cal.App.5th at 751.) The court may consider factors unique to the case such as risks associated with contingent fee, quality of work, novelty and complexity of issues, and results obtained. (*Graham v. DaimlerChrysler Corp.* (2004) 34 Cal.4th 553, 579-580.) The decision to apply multiplier is entirely discretionary. (*Galbiso v. Orosi Pub. Util. Dist.* (2008) 167 Cal.App.4th at 1089.) The purpose of a fee enhancement is “primarily to compensate the attorney for prevailing party at a rate reflecting the risk of nonpayment in contingency cases as a class.” (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1138.)

Plaintiffs seek the court to award a multiplier of 1.5 times the lodestar figure. Plaintiffs argue that their attorneys represented them while undertaking the risk of litigating the case on a fully contingent basis and being paid for their services. However, Plaintiffs’ counsels claim to have significant experience and specialized knowledge in handling of lemon law cases. That would imply that the law firm managed by seasoned litigators in

the field possess the ability to properly evaluate the strength of and the probability of success on a case, and the associated risk before taking it on. Having handled numerous similar cases and prevailed, Plaintiffs' attorneys could have understood the risk of recovery in this case was not high. The settlement amount over three years after filing without engaging in extensive trial litigation shows lack of such risk. Thus, no multiplier should apply in increasing the amount of fee recovery.

The reasonableness of attorneys' hourly rates -Attorney's fees under the lodestar method is to be "based on the prevailing hourly rates for comparable legal services in the community." (*Premier Medical, supra*, 163 Cal.App.4th at 558.)

Here, the hourly rates billed by Plaintiffs' attorneys, ranging from \$300 to \$600, include rates as high as \$600 charged by Mr. Kirnos for anticipated reply work. Hourly rates up to \$550 are consistent with the rates of lemon law attorneys that have been approved by the Courts in Riverside County. The rate of \$600 charged by Mr. Kirnos for anticipated reply work is not justified and should be reduced to \$550.

In sum, the fees should be reduced by \$3,551.00 for interoffice conferences, duplicative work, and anticipated work rate adjustment. No multiplier should apply. Defendant has otherwise presented no grounds for further reduction of fees or adjustment of hourly rates.